Article 769(NCC). The action granted to the donor by reason of ingratitude cannot be renounced in advance. This action prescribes within one year, to be counted from the time the donor had knowledge of the fact and it was possible for him to bring the action.

ARTICLE 1144(NCC). The following actions must be brought within ten years from the time the right of action accrues:
(1) Upon a written contract;
(2) Upon an obligation created by law;
(3) Upon a judgment.

ARTICLE 1145(NCC). The following actions must be commenced within six years:
(1) Upon an oral contract;
(2) Upon a quasi-contract.

3. Absolute Community of Property Arts. 88-104 History
   When Mandatory
   Effect of Waiver of Rights
   Property Included/ Presumption of Conjugality Arts. 91, 95

General Provisions:

Article 88. The absolute community of property between spouses shall commence at the precise moment that the marriage is celebrated. Any stipulation, express or implied, for the commencement of the community regime at any other time shall be void.

Article 89. No waiver of rights, shares and effects of the absolute community of property during the marriage can be made except in case of judicial separation of property.
When the waiver takes place upon a judicial separation of property, or after the marriage has been dissolved or annulled, the same shall appear in a public instrument and shall be recorded as provided in Article 77. The creditors of the spouse who made such waiver may petition the court to rescind the waiver to the extent of the amount sufficient to cover the amount of their credits.

> **Article 77.** The marriage settlements and any modification thereof shall be in writing, signed by the parties and executed before the celebration of the marriage. They shall not prejudice third persons unless they are registered in the local civil registry where the marriage contract is recorded as well as in the proper registries of properties.

Article 90. The provisions on co-ownership shall apply to the absolute community of property between the spouses in all matters not provided for in this Chapter.

What constitutes community property

Article 91. Unless otherwise provided in this Chapter or in the marriage settlements, the community property shall consist of all the property owned by the spouses at the time of the celebration of the marriage or acquired thereafter.

Article 92. The following shall be excluded from the community property:

(1) Property acquired during the marriage by gratuitous title by either spouse, and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;

(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;

(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

Article 93. Property acquired during the marriage is presumed to belong to the community, unless it is proved that it is one of those excluded therefrom.

Charges and Obligations of the Absolute Community

Article 94. The absolute community of property shall be liable for:

(1) The support of the spouses, their common children, and legitimate children of either spouse; however, the support of illegitimate children shall be governed by the provisions of this Code on Support;

(2) All debts and obligations contracted during the marriage by the designated administrator-

spouse for the benefit of the community, or by both spouses, or by one spouse with the consent of the other;

(3) Debts and obligations contracted by either spouse without the consent of the other to the extent that the family may have been benefited;

(4) All taxes, liens, charges and expenses, including major or minor repairs, upon the community property;

(5) All taxes and expenses for mere preservation made during marriage upon the separate property of either spouse used by the family;

(6) Expenses to enable either spouse to commence or complete a professional or vocational course, or other activity for self-improvement;

(7) Antenuptial debts of either spouse insofar as they have redounded to the benefit of the family;

(8) The value of what is donated or promised by both spouses in favor of their common legitimate children for the exclusive purpose of commencing or completing a professional or vocational course or other activity for self-improvement;

(9) Antenuptial debts of either spouse other than those falling under paragraph (7) of this Article, the support of illegitimate children of either spouse, and liabilities incurred by either spouse by reason of a crime or a quasi-delict, in case of absence or insufficiency of the exclusive property of the debtor-spouse, the payment of which shall be considered as advances to be deducted from the share of the debtor-spouse upon liquidation of the community; and

(10) Expenses of litigation between the spouses unless the suit is found to be groundless.

If the community property is insufficient to cover the foregoing liabilities, except those falling under paragraph (9), the spouses shall be solidarily liable for the unpaid balance with their separate properties.

Article 95. Whatever may be lost during the marriage in any game of chance, betting, sweepstakes, or any other kind of gambling, whether permitted or prohibited by law, shall be borne by the loser and shall not be charged to the community but any winnings therefrom shall form part of the community property.

Ownership, Administrative, Enjoyment and Disposition of the Community Property

Article 96. The administration and enjoyment of the community property shall belong to both spouses jointly. In case of disagreement, the husband's decision shall prevail, subject to recourse to the court by the wife for proper remedy, which must be availed of within five years from the date of the contract implementing such decision.

In the event that one spouse is incapacitated or otherwise unable to participate in the administration of the common properties, the other spouse may assume sole powers of administration. These powers do not include disposition or encumbrance without authority of the court or the written consent of the other spouse. In the absence of such authority or consent, the disposition or encumbrance shall be void. However, the transaction shall be construed as a continuing offer on the part of the consenting spouse and the third person, and may be perfected as a binding contract upon the acceptance by the other spouse or authorization by the court before the offer is withdrawn by either or both offerors.

Article 97. Either spouse may dispose by will of his or her interest in the community property.

Article 98. Neither spouse may donate any community property without the consent of the other. However, either spouse may, without the consent of the other, make moderate donations from the community property for charity or on occasions of family rejoicing or family distress.

Dissolution of Absolute Community Regime

Article 99. The absolute community terminates:
(1) Upon the death of either spouse;
(2) When there is a decree of legal separation;
(3) When the marriage is annulled or declared void; or
(4) In case of judicial separation of property during the marriage under Article 134 to 138.

Article 100. The separation in fact between husband and wife shall not affect the regime of absolute community except that:

(1) The spouse who leaves the conjugal home or refuses to live therein, without just cause, shall not have the right to be supported;

(2) When the consent of one spouse to any transaction of the other is required by law, judicial authorization shall be obtained in a summary proceeding;

(3) In the absence of sufficient community property, the separate property of both spouses shall be solidarily liable for the support of the family. The spouse present shall, upon proper petition in a summary proceeding, be given judicial authority to administer or encumber any specific separate property of the other spouse and use the fruits or proceeds thereof to satisfy the latter's share.

Article 101. If a spouse without just cause abandons the other or fails to comply with his or her obligations to the family, the aggrieved spouse may petition the court for receivership, for judicial separation of property or for authority to be the sole administrator of the absolute community, subject to such precautionary conditions as the court may impose.

The obligations to the family mentioned in the preceding paragraph refer to marital, parental or property relations.

A spouse is deemed to have abandoned the other when her or she has left the conjugal dwelling without intention of returning. The spouse who has left the conjugal dwelling for a period of three months or has failed within the same period to give any information as to his or her whereabouts shall be prima facie presumed to have no intention of returning to the conjugal dwelling.

Liquidation of the Absolute Community Assets and Liabilities

Article 102. Upon dissolution of the absolute community regime, the following procedure shall apply:

(1) An inventory shall be prepared, listing separately all the properties of the absolute community and the exclusive properties of each spouse.

(2) The debts and obligations of the absolute community shall be paid out of its assets. In case of insufficiency of said assets, the spouses shall be solidarily liable for the unpaid balance with their separate properties in accordance with the provisions of the second paragraph of Article 94.

(3) Whatever remains of the exclusive properties of the spouses shall thereafter be delivered to each of them.

(4) The net remainder of the properties of the absolute community shall constitute its net assets, which shall be divided equally between husband and wife, unless a different proportion or division was agreed upon in the marriage settlements, or unless there has been a voluntary waiver of such share provided in this Code. For purpose of computing the net profits subject to forfeiture in accordance with Articles 43, No. (2) and 63, No. (2), the said profits shall be the increase in value between the market value of the community property at the time of the celebration of the

marriage and the market value at the time of its dissolution.

(5) The presumptive legitimes of the common children shall be delivered upon partition, in accordance with Article 51.

(6) Unless otherwise agreed upon by the parties, in the partition of the properties, the conjugal dwelling and the lot on which it is situated shall be adjudicated to the spouse with whom the majority of the common children choose to remain. Children below the age of seven years are deemed to have chosen the mother, unless the court has decided otherwise. In case there in no such majority, the court shall decide, taking into consideration the best interests of said children.

Article 103. Upon the termination of the marriage by death, the community property shall be liquidated in the same proceeding for the settlement of the estate of the deceased.

If no judicial settlement proceeding is instituted, the surviving spouse shall liquidate the community property either judicially or extra-judicially within six months from the death of the deceased spouse. If upon the lapse of the six months period, no liquidation is made, any disposition or encumbrance involving the community property of the terminated marriage shall be void.

Should the surviving spouse contract a subsequent marriage without compliance with the foregoing requirements, a mandatory regime of complete separation of property shall govern the property relations of the subsequent marriage.

Article 104. Whenever the liquidation of the community properties of two or more marriages contracted by the same person before the effectivity of this Code is carried out simultaneously, the respective capital, fruits and income of each community shall be determined upon such proof as may be considered according to the rules of evidence. In case of doubt as to which community the existing properties belong, the same shall be divided between the different communities in proportion to the capital and duration of each.

ABSOLUTE COMMUNITY OF PROPERTY REGIME

- Nature and Concept:
  - The husband and wife become co-owners of all properties brought into the marriage or acquired during its subsistence, unless otherwise provided by law or marriage settlement.
  - When the couple's marriage or community is dissolved, the common mass is divided between the spouses, or their respective heirs, equally or in the proportion the parties have established, irrespective of the value each may have originally owned.
- When applicable
  - Applicable only to valid and voidable marriages and void marriages under Art 40, FC.
- History and When Mandatory:
  - Civil Code - the default regime was the Conjugal Partnership of Gains (CPG).
  - Family Code (effective August 3, 1988) - making ABSOLUTE Community of Property Regime (ACP) mandatory in the absence of a marriage settlement or when the regime agreed upon is void.
- Properties INCLUDED
  - All properties owned by the spouses at the time of the celebration of the marriage or acquired thereafter, unless specifically excluded by law or in the marriage settlement.
- Presumption in Favor of Community Property
  - Properties acquired before and during the marriage are presumed to belong to the community (rebuttable presumption)

- Properties EXCLUDED
  - Properties acquired BEFORE the marriage which has been excluded from the ACP in the marriage settlement
  - Property acquired DURING the marriage by gratuitous title
    - Donation/inheritance
    - Including fruits or income
    - No express provision by the donor, grantor, testator that it will belong to the ACP
    - Made to either spouse.
  - Property for personal and exclusive use of either spouse acquired BEFORE or DURING marriage
    → EXCEPT – jewelries
  - Property acquired by either spouse BEFORE marriage if either has legitimate descendants in prior marriage
    → including fruits and income, if any
  - Q: What happens if the exclusive property is sold or exchanged? REMAINS EXCLUSIVE
    → Excluded by marriage settlement - proceeds will become part of the ACP (unless excluded in the marriage settlement)
    → Excluded by operation of law - remains exclusive
  -

Imani v. Metrobank, 17 November 2010

Facts:
Evangeline Imani signed a surety agreement for C.P. Dazo Tannery, Inc. (CPDTI) with Metrobank in 1981. After CPDTI defaulted, Metrobank sued CPDTI and its sureties, including Imani. Metrobank won the case, and a property titled "Evangelina Dazo-Imani married to Sina Imani" was levied upon for execution. Imani argued the property was conjugal and not liable for her personal debt.

To support her assertion that the property belongs to the conjugal partnership, petitioner submitted the Affidavit of Crisanto Origen, attesting that petitioner and her husband were the vendees of the subject property, and the photocopies of the checks allegedly issued by Sina Imani as payment for the subject property.

Issue:
Whether the property was conjugal and thus exempt from execution for Imani's surety liability.

Ruling:
NO

All property of the marriage is presumed to be conjugal. However, for this presumption to apply, the party who invokes it must first prove that the property was acquired during the marriage. Proof of acquisition during the coverture is a condition sine qua non to the operation of the presumption in favor of the conjugal partnership. **Thus, the time when the property was acquired is material.**

The fact that the land was registered in the name of Evangelina Dazo-Imani married to Sina Imani is no proof that the property was acquired during the spouses' coverture. Acquisition of title and registration thereof are two different acts. It is well settled that registration does not confer title but merely confirms one already existing.

Ratio decidendi:

Class Notes:

Dispositive portion:

Navarro v. Judge Escobido and Go, 27 November 2009

Facts:

Karen T. Go, the registered owner of a sole proprietorship called Kargo Enterprises, filed two complaints for replevin and/or sum of money against Roger Navarro. Navarro had leased two motor vehicles from Kargo Enterprises but failed to make payments, resulting in dishonored checks.

Navarro challenged the complaints, arguing that: Karen Go was not the "real party-in-interest" because her husband, Glenn Go, had signed the lease agreements.

On the other hand, Karen Go contends that while the business is registered in her name, it is in fact part of their conjugal property.

Issue:

Whether Kargo Enterprises as a sole proprietorship is conjugal or paraphernal property.

Ruling:

: It is a conjugal property

The registration of the trade name in the name of one person – a woman – does not necessarily lead to the conclusion that the trade name as a property is hers alone, particularly when the woman is married. By law, all property acquired during the marriage, whether the acquisition appears to have been made, contracted or registered in the name of one or both spouses, is presumed to be conjugal unless the contrary is proved.
Article 124 of the Family Code, on the administration of the conjugal property, provides:

Art. 124. **The administration and enjoyment of the conjugal partnership property shall belong to both spouses jointly.** In case of disagreement, the husband's decision shall prevail, subject to recourse to the court by the wife for proper remedy, which must be availed of within five years from the date of the contract implementing such decision.

This provision, by its terms, allows either Karen or Glenn Go to speak and act with authority in managing their conjugal property, *i.e.*, Kargo Enterprises. No need exists, therefore, for one to obtain the consent of the other before performing an act of administration or any act that does not dispose of or encumber their conjugal property.

Under Article 108 of the Family Code, the conjugal partnership is governed by the rules on the contract of partnership in all that is not in conflict with what is expressly determined in this Chapter or by the spouses in their marriage settlements. In other words, the property relations of the husband and wife shall be governed primarily by Chapter 4 on Conjugal Partnership of Gains of the Family Code and, suppletorily, by the spouses' marriage settlement and by the rules on partnership under the Civil Code.

A rule on partnership applicable to the spouses' circumstances is Article 1811 of the Civil Code, which states:

Art. 1811. A partner is a co-owner with the other partners of specific partnership property.

The incidents of this co-ownership are such that:

(1) A partner, subject to the provisions of this Title and to any agreement between the partners, **has an equal right with his partners to possess specific partnership property** for partnership purposes; xxx

Under this provision, Glenn and Karen Go are effectively co-owners of Kargo Enterprises and the properties registered under this name; hence, both have an equal right to seek possession of these properties. Applying Article 484 of the Civil Code, which states that "in default of contracts, or special provisions, co-ownership shall be governed by the provisions of this Title," we find further support in Article 487 of the Civil Code that allows any of the co-owners to bring an action in ejectment with respect to the co-owned property.

Ratio decidendi:

Class Notes:

Dispositive portion:

Property Excluded Arts. 92, 95

Art. 92. The following shall be excluded from the community property:

(1) Property acquired during the marriage by gratuitous title by either spouse, and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;

(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;

(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

Article 95. Whatever may be lost during the marriage in any game of chance, betting, sweepstakes, or any other kind of gambling, whether permitted or prohibited by law, shall be borne by the loser and shall not be charged to the community but any winnings therefrom shall form part of the community property.

Villanueva v. CA, 427 S 439

Facts:

Plaintiff Eusebia Napisa Retuya, is the legal wife of defendant Nicolas Retuya, having been married to the latter on October 7, 1926. Out of the lawful wedlock, they begot five (5) children. During their marriage they acquired real properties and all improvements.

Also, defendant, Nicolas Retuya, is co-owner of a parcel of land situated in Mandaue City which he inherited from his parents Esteban Retuya and Balbina Solon as well as the purchasers of hereditary shares of approximately eight (8) parcels of land in Mandaue City.

In 1945, Nicolas left Eusebia and began cohabiting with Pacita Villanueva, with whom he had an illegitimate son, Procopio.

Eusebia filed a complaint seeking reconveyance, accounting, and damages, arguing the properties acquired during her marriage to Nicolas were conjugal. Pacita and Procopio argued the properties were Nicolas's sole property or that Pacita had a claim to co-ownership under Article 148 of the Family Code.

Issue:
Whether or not the properties were conjugal.

Ruling:
Yes

The Family Code provisions on conjugal partnerships govern the property relations between Nicolas and Eusebia even if they were married before the effectivity of Family Code. Article 105 of the Family Code explicitly mandates that the Family Code shall apply to conjugal partnerships established before the Family Code without prejudice to vested rights already acquired under the Civil Code or other laws.

> Art. 105. In case the future spouses agree in the marriage settlements that the regime of conjugal partnership gains shall govern their property relations during marriage, the provisions in this Chapter shall be of supplementary application.
>
> The provisions of this Chapter shall also apply to conjugal partnerships of gains already established between spouses before the effectivity of this Code, without prejudice to vested rights already acquired in accordance with the Civil Code or other laws, as provided in Article 256

Thus, under the Family Code, if the properties are acquired during the marriage, the presumption is that they are conjugal. The burden of proof is on the party claiming that they are not conjugal. This is counter-balanced by the requirement that the properties must first be proven to have been acquired during the marriage before they are presumed conjugal.

Since the subject properties, including Lot No. 152, were acquired during the marriage of Nicolas and Eusebia, the presumption under Article 116 of the Family Code is that all these are conjugal properties of Nicolas and Eusebia. The burden is on petitioners to prove that the subject properties are not conjugal. The presumption in Article 116, which subsists "unless the contrary is proved," stands as an obstacle to any claim the petitioners may have. The burden of proving that a property is exclusive property of a spouse rests on the party asserting it and the evidence required must be clear and convincing. Petitioners failed to meet this standard.

The tax declarations are not sufficient proof to overcome the presumption under Article 116 of the Family Code. All property acquired by the spouses during the marriage, regardless in whose name the property is registered, is presumed conjugal unless proved otherwise. The presumption is not rebutted by the mere fact that the certificate of title of the property or the tax declaration is in the name of one of the spouses only. Article 116 of the Family Code expressly provides that the presumption remains even if the property is "registered in the name of one or both of the spouses."

The cohabitation of a spouse with another person, even for a long period, does not sever the tie of a subsisting previous marriage. Otherwise, the law would be giving a stamp of approval to an act that is both illegal and immoral. What petitioners fail to grasp is that Nicolas and Pacita's cohabitation cannot work to the detriment of Eusebia, the legal spouse. The marriage of Nicolas and Eusebia continued to exist regardless of the fact that Nicolas was already living with Pacita. Hence, all property acquired from 7 October 1926, the date of Nicolas and Eusebia's marriage, until 23 November 1996, the date of Eusebia's death, are still presumed conjugal. Petitioners

have neither claimed nor proved that any of the subject properties was acquired outside or beyond this period.

Finally, petitioners' reliance on Article 148 of the Family Code is misplaced. A reading of Article 148 readily shows that there must be proof of "actual joint contribution" by both the live-in partners before the property becomes co-owned by them in proportion to their contribution. The presumption of equality of contribution arises only in the absence of proof of their proportionate contributions, subject to the condition that **actual joint contribution is proven first**. Simply put, proof of actual contribution by both parties is required, otherwise there is no co-ownership and no presumption of equal sharing. Petitioners failed to show proof of actual contribution by Pacita in the acquisition of Lot No. 152. In short, petitioners failed to prove that Pacita bought Lot No. 152 with her own money, or that she actually contributed her own money to acquire it.

Ratio decidendi:

Class Notes:

Dispositive portion:

Ching v. CA, 423 S 371

Facts:

Alfredo Ching (petitioner husband) executed a continuing guaranty/suretyship agreement for loans obtained by Philippine Blooming Mills Company, Inc. (PBMCI) from Allied Banking Corporation (ABC). When PBMCI defaulted on the loans, ABC filed a case to recover the debt and subsequently levied on 100,000 shares of stock registered in Alfredo Ching's name. Encarnacion Ching (petitioner wife) filed a motion to set aside the levy, arguing that the shares were acquired during their marriage with conjugal funds and that the debt incurred by her husband did not redound to the benefit of the conjugal partnership.

Issue:

- Were the shares of stock conjugal property?
- Was the conjugal partnership liable for the debt incurred by the husband as a surety for another corporation?

Ruling:

Article 160 of the New Civil Code provides that all the properties acquired during the marriage are presumed to belong to the conjugal partnership, unless it be proved that it pertains exclusively to the husband, or to the wife.

In Tan v. Court of Appeals, we held that it is not even necessary to prove that the properties were acquired with funds of the partnership. As long as the properties were acquired by the parties during the marriage, they are presumed to be conjugal in nature. In fact, even when the manner in which the properties were acquired does not appear, the presumption will still apply, and the properties will still be considered conjugal. The presumption of the conjugal nature of the properties acquired during the marriage subsists in the absence of clear, satisfactory and convincing evidence to overcome the same.

In this case, the evidence adduced by the petitioners in the RTC is that the 100,000 shares of stocks in the Citycorp Investment Philippines were issued to and registered in its corporate books

in the name of the petitioner-husband when the said corporation was incorporated on May 14, 1979. This was done during the subsistence of the marriage of the petitioner-spouses. The shares of stocks are, thus, presumed to be the conjugal partnership property of the petitioners. The private respondent failed to adduce evidence that the petitioner-husband acquired the stocks with his exclusive money. The barefaced fact that the shares of stocks were registered in the corporate books of Citycorp Investment Philippines solely in the name of the petitioner-husband does not constitute proof that the petitioner-husband, not the conjugal partnership, owned the same.

Article 161(1) of the New Civil Code (now Article 121[2 and 3] of the Family Code of the Philippines) provides:

Art. 161. The conjugal partnership shall be liable for:

(1) All debts and obligations contracted by the husband for the benefit of the conjugal partnership, and those contracted by the wife, also for the same purpose, in the cases where she may legally bind the partnership.

In this case, the private respondent failed to prove that the conjugal partnership of the petitioners was benefited by the petitioner-husband's act of executing a continuing guaranty and suretyship agreement with the private respondent for and in behalf of PBMCI. The contract of loan was between the private respondent and the PBMCI, solely for the benefit of the latter. No presumption can be inferred from the fact that when the petitioner-husband entered into an accommodation agreement or a contract of surety, the conjugal partnership would thereby be benefited. The private respondent was burdened to establish that such benefit redounded to the conjugal partnership. The benefits must be those directly resulting from the loan. They cannot merely be a by-product or a spin-off of the loan itself.

Ratio decidendi:

Class Notes:

Dispositive portion:

Tan v. CA, 273 S 229

Facts

Alfonso and Eteria were married. A parcel of land and its improvements were covered by a Transfer Certificate of Title registered under the names of Alfonso, married to Eteria; Celestino, married to Rosario; and Maximo, single, in equal shares. The title bore an annotation that the property remained subject to liabilities under Section 4, Rule 74 of the Rules of Court against the estate of the deceased mother of Alfonso, Celestino, and Maximo.

Eteria filed an action for partition and accounting against Celestino, Maximo, and their respective spouses, claiming that the one-third undivided share registered in Alfonso's name formed part of their absolute community of property because it was titled during their marriage. The brothers opposed the partition, asserting that the property was acquired exclusively through inheritance from their deceased mother. Eteria failed to present evidence that the property was acquired with common marital funds or that marital funds were used in constructing the improvements thereon.

Issue

Does the one-third undivided share of the property registered in the name of a spouse who is described as "married to" the other spouse form part of the absolute community of property when the title itself shows that it was acquired through inheritance?

Ruling

Legal Basis Quoted Verbatim

"Article 160 of the New Civil Code provides that all property of the marriage is presumed to belong to the conjugal partnership, unless it be proved that it pertains exclusively to the husband or to the wife. However, the presumption refers only to the property acquired during the marriage and does not operate when there is no showing as to when the property alleged to be conjugal was acquired. The presumption may be rebutted by strong, clear, categorical and convincing evidence - there must be strict proof of ownership of one of the spouses, and the burden of proof rests upon the party asserting it."

"Article 148 of the New Civil Code provides:

Art. 148. The following shall be the exclusive property of each spouse:

(1) That which is brought to the marriage as his own;

(2) That which each acquires, during the marriage, by lucrative title;

(3) That which is acquired by right of redemption or by exchange with other property belonging to only one of the spouses;

(4) That which is purchased with exclusive money of the wife or of the husband."

"The lot in question was not acquired by Alfonso Tan and Eteria Teves Tan during their marriage. It is the former's exclusive property which he had inherited from his mother, Trinidad Uy, the original owner of the property."

"The phrase 'married to Eteria Teves' in the certificate of title is merely descriptive of the civil status of Alfonso Tan and does not necessarily make the property conjugal."

"The condition in the title that the property is subject to 'liabilities imposed by Section 4, Rule 74 of the Rules of Court, for a period of two (2) years, from January 9, 1970, against the estate of the deceased Trinidad Uy' supports the contention of the respondents that the lot was inherited by Alfonso, Celestino and Maximo from their late mother."

Ratio Decidendi

Property acquired during the marriage by gratuitous or lucrative title (such as inheritance) is excluded from the community/partnership and remains the exclusive property of the inheriting spouse. While properties acquired during marriage are generally presumed to belong to the marital regime, this presumption is rebuttable by clear and convincing evidence.

The statutory annotation on the title subjecting the real estate to liabilities against the deceased mother's estate under Section 4, Rule 74 of the Rules of Court proves that the property was acquired by succession. Furthermore, the addition of the words "married to" in the certificate of title is merely descriptive of the civil status of the registered owner and does not confer co-ownership upon the spouse or convert exclusive inherited property into common marital property. Because the claimant spouse failed to prove that the property was acquired with marital funds, the one-third undivided share belongs exclusively to the inheriting spouse.

Fallo

"ACCORDINGLY, the petition is hereby DENIED and the decision of the Court of Appeals dated June 20,

1994 is AFFIRMED.

SO ORDERED."

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Charges Against / Obligations of Absolute Community Arts. 94-95 in rel. to Arts. 194-195

Article 94. The absolute community of property shall be liable for:

(1) The support of the spouses, their common children, and legitimate children of either spouse; however, the support of illegitimate children shall be governed by the provisions of this Code on Support;

(2) All debts and obligations contracted during the marriage by the designated administrator-spouse for the benefit of the community, or by both spouses, or by one spouse with the consent of the other;

(3) Debts and obligations contracted by either spouse without the consent of the other to the extent that the family may have been benefited;

(4) All taxes, liens, charges and expenses, including major or minor repairs, upon the community property;

(5) All taxes and expenses for mere preservation made during marriage upon the separate property of either spouse used by the family;

(6) Expenses to enable either spouse to commence or complete a professional or vocational course, or other activity for self-improvement;

(7) Antenuptial debts of either spouse insofar as they have redounded to the benefit of the family;

(8) The value of what is donated or promised by both spouses in favor of their common legitimate children for the exclusive purpose of commencing or completing a professional or vocational course or other activity for self-improvement;

(9) Antenuptial debts of either spouse other than those falling under paragraph (7) of this Article, the support of illegitimate children of either spouse, and liabilities incurred by either spouse by reason of a crime or a quasi-delict, in case of absence or insufficiency of the exclusive property of the debtor-spouse, the payment of which shall be considered as advances to be deducted from the share of the debtor-spouse upon liquidation of the community; and

(10) Expenses of litigation between the spouses unless the suit is found to be groundless.

If the community property is insufficient to cover the foregoing liabilities, except those falling under paragraph (9), the spouses shall be solidarily liable for the unpaid balance with their separate properties.

Article 95. Whatever may be lost during the marriage in any game of chance, betting, sweepstakes, or any other kind of gambling, whether permitted or prohibited by law, shall be borne by the loser and shall not be charged to the community but any winnings therefrom shall form part of the community property.

Article 194. Support compromises everything indispensable for sustenance, dwelling, clothing, medical attendance, education and transportation, in keeping with the financial capacity of the family.

The education of the person entitled to be supported referred to in the preceding paragraph shall include his schooling or training for some profession, trade or vocation, even beyond the age of majority. Transportation shall include expenses in going to and from school, or to and from place of work.

Article 195. Subject to the provisions of the succeeding articles, the following are obliged to support each other to the whole extent set forth in the preceding article:
(1) The spouses;
(2) Legitimate ascendants and descendants;
(3) Parents and their legitimate children and the legitimate and illegitimate children of the latter;
(4) Parents and their illegitimate children and the legitimate and illegitimate children of the latter; and
(5) Legitimate brothers and sisters, whether of full or half-blood

Ros and Aguete v. PNB Laoag, 6 April 2011

Facts:

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Go v. CA, 272 S 752

Facts:

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Ownership, Administration, Enjoyment and Administration Arts. 96-98 Compared with Art. 206, Civil Code of the Philippines Remedies in case of Disagreements
Sole Administration, When Permissible

Article 96. The administration and enjoyment of the community property shall belong to both spouses jointly. In case of disagreement, the husband's decision shall prevail, subject to recourse to the court by the wife for proper remedy, which must be availed of within five years from the date of the contract implementing such decision.
In the event that one spouse is incapacitated or otherwise unable to participate in the administration of the common properties, the other spouse may assume sole powers of administration. These powers do not include disposition or encumbrance without authority of the court or the written consent of the other spouse. In the absence of such authority or consent, the disposition or encumbrance shall be void. However, the transaction shall be construed as a continuing offer on the part of the consenting spouse and the third person, and may be perfected as a binding contract upon the acceptance by the other spouse or authorization by the court before the offer is withdrawn by either or both offerors.

Article 97. Either spouse may dispose by will of his or her interest in the community property.

Article 98. Neither spouse may donate any community property without the consent of the other. However, either spouse may, without the consent of the other, make moderate donations from the community property for charity or on occasions of family rejoicing or family distress.

ARTICLE 206. The ownership, administration, possession and enjoyment of the common property belong to both spouses jointly. In case of disagreement, the courts shall settle the difficulty.

Siochi vs. Gozon, et al., 18 March 2010

Facts:

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

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Disposition/Encumbrance:
a) of Absolute Community Property
Arts. 96, par. 2 and Art. 98 in rel. to Art. 739, Civil Code

Article 96. The administration and enjoyment of the community property shall belong to both spouses jointly. In case of disagreement, the husband's decision shall prevail, subject to recourse to the court by the wife for proper remedy, which must be availed of within five years from the date of the contract implementing such decision.

In the event that one spouse is incapacitated or otherwise unable to participate in the administration of the common properties, the other spouse may assume sole powers of administration. These powers do not include disposition or encumbrance without authority of the court or the written consent of the other spouse. In the absence of such authority or consent, the disposition or encumbrance shall be void. However, the transaction shall be construed as a continuing offer on the part of the consenting spouse and the third person, and may be perfected as a binding contract upon the acceptance by the other spouse or authorization by the court before the offer is withdrawn by either or both offerors.

Article 98. Neither spouse may donate any community property without the consent of the other. However, either spouse may, without the consent of the other, make moderate donations from the community property for charity or on occasions of family rejoicing or family distress.

ARTICLE 739(NCC). The following donations shall be void:

(1) Those made between persons who were guilty of adultery or concubinage at the time of the donation;

(2) Those made between persons found guilty of the same criminal offense, in consideration thereof;

(3) Those made to a public officer or his wife, descendants and ascendants, by reason of his office.

In the case referred to in No. 1, the action for declaration of nullity may be brought by the spouse of the donor or donee; and the guilt of the donor and donee may be proved by preponderance of evidence in the same action.

The Commoner Lending v. Balandra, GR 247646, 29 March 2023

Facts:

Alita mortgaged their conjugal property to Commoner Lending to secure a loan using a General Power of Attorney (GPA) where Rafael's signature was forged. Rafael was out of the country at the time and did not consent.

Issue:

Ruling:

The Court has consistently held that a disposition or encumbrance of a conjugal property made by a spouse, without the written consent of the other, during the effectivity of the Family Code is void.35 Article 124 thereof reads:

> Article 124. The administration and enjoyment of the conjugal partnership property shall belong to both spouses jointly. In case of disagreement, the husband's decision shall prevail, subject to recourse to the court by the wife for proper remedy, which must be availed of within five years from the date of the contract implementing such decision.
>
> *In the event that one spouse is incapacitated or otherwise unable to participate in the administration of the conjugal properties, the other spouse may assume sole powers of administration. These powers do not include disposition or encumbrance without authority of the court or the written consent of the other spouse. In the absence of such authority or consent, the disposition or encumbrance shall be void.* However, the transaction shall be construed as a continuing offer on the part of the consenting spouse and the third person, and may be perfected as a binding contract upon the acceptance by the other spouse or authorization by the court before the offer is withdrawn by either or both offerors. (Italics and underscoring supplied)

The contemplated encumbrance or disposition, albeit categorized as a "void" transaction, is further characterized *distinctly* from void contracts under Article 1409 of the Civil Code that are deemed inexistent and, consequently, incapable of ratification. Notably, void dispositions under Article 124 of the Family Code are *expressly deemed* as a continuing offer which may be perfected and accepted by consent of the previously non-consenting spouse.

In *Spouses Cueno v. Spouses Bautista* the Court noted the special nature of the void transactions under the Family Code, *i.e.,* they can become binding contracts upon the acceptance by the other spouse or authorization by the court before the continuing offers are withdrawn by either or both spouses.39 In other words, a void contract under Article 124 of the Family, while not capable of ratification, is *distinctively* susceptible of perfection through acceptance by the nonconsenting spouse.

In the case, the REM executed by Alita without the written consent or authority of respondent partook of a continuing offer from petitioner and Alita that a mortgage be constituted over the subject conjugal properties to secure the questioned loan. Respondent had the option of accepting or rejecting the offer before its withdrawal either by petitioner or Alita. As found by both the RTC and CA, respondent, instead of rejecting the offer, undertook to pay the outstanding loan obligation and made partial payments thereon. The circumstances establish respondent's acceptance of the offer, thereby perfecting the previously unauthorized REM into a binding undertaking on his part to constitute the mortgage over the subject conjugal properties as security for the loan.
It bears underscoring that respondent's undertaking to settle the questioned loan, making partial payments thereon to prevent foreclosure, was relied upon by the petitioner. Pursuant to Article 1431 of the Civil Code,41 a representation is rendered conclusive upon the party making it, and this representation cannot be denied as against the person relying thereon. That respondent's undertaking to pay the loan proceeded from his vain effort to save the mortgaged properties from being foreclosed—is immaterial and irrelevant. There is nothing special or compelling about this reason as the foreclosure of a mortgage is a necessary consequence of the failure to settle the loan it secures.

Ratio decidendi:

Class Notes:

Dispositive portion:

Santos v. Santos, G.R. No. 250774. June 16, 2021

Facts:
The dispute involved the heirs of the deceased Jose Santos. Jose was first married to Josefa, with whom he had eight children. After Josefa's death, Jose married Maria D. Santos. During his marriage to Maria, Jose acquired a 694-square-meter property, which he later donated to Maria through a "Kasulatan ng Pagkakaloob Pala".

After Jose's death, his children and grandchildren from his first marriage sought to partition the property, arguing it was part of Jose's estate. Maria claimed sole ownership based on the donation deed.

Issue:

Ruling:
Void Donation: The Court declared the donation by Jose to Maria as null and void because Article 87 of the Family Code of the Philippines expressly prohibits donations between spouses during their marriage, with minor exceptions not applicable in this case.

Community Property: Since the donation was void, the property was considered part of the absolute community of property of Jose and Maria's marriage, as it was acquired during their union. Upon Jose's death, the community technically dissolved. Maria automatically owned one-half of the property as her share of the community assets.

Ratio decidendi:

Class Notes:

Dispositive portion:

Alexander v. Escalona, GR 256141, 19 July 2022

Facts:
The case centered on two parcels of unregistered land acquired by Spouses Jorge and Hilaria Escalona during their marriage, which was celebrated under the **Civil Code** in 1960. The key transactions occurred after the **Family Code** took effect in 1988:

1. In 1998, Jorge, without Hilaria's consent, executed a waiver of rights for one lot in favor of his illegitimate son, Reygan.
2. In 2005, Reygan sold both properties to Belinda Alexander (the petitioner).

The Spouses Escalona filed a complaint to annul these transactions.

Issue:

Ruling:
The Supreme Court used this case to settle conflicting jurisprudence regarding which law applies and the nature of the contract (voidable vs. void) when conjugal property is alienated without spousal consent:

Applicable Law is determined by the date of the transaction: The Court ruled that the law in effect at the time of the alienation governs the transaction's validity, not the date of the marriage.

Transactions under the Family Code are Void:
The waiver of rights over the first lot by Jorge without Hilaria's written consent was declared void under Article 124 of the Family Code. The Family Code explicitly states that such dispositions are void in the absence of spousal consent.

The sale of the second lot was found to be inexistent because both spouses had not given their consent.

Prescriptive Period:

The Court clarified a distinction: transactions without consent before the Family Code are merely voidable and an action for annulment must be filed within 10 years (under the Civil Code).

Transactions after the Family Code without consent are void, and actions to declare the inexistence of a void contract are generally imprescriptible (can be challenged at any time).

Buyer in Good Faith is irrelevant for unregistered land: The petitioner, Belinda Alexander, could not claim the status of a "buyer in good faith" because the properties were unregistered lands. The good faith rule in land registration law only applies to registered lands.

Ratio decidendi:

Class Notes:

Dispositive portion:

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Matthews v. Taylor, 22 June 2009

Facts:
The case involved Benjamin Taylor, a British national, and his Filipino wife, Joselyn C. Taylor. During their marriage, Joselyn purchased a parcel of land in Boracay, allegedly using funds provided by Benjamin. The property was titled in Joselyn's name.
Later, Joselyn entered into a 25-year lease agreement for the property with Philip Matthews (the petitioner), without Benjamin's explicit consent on the main document. Benjamin filed an action to nullify the lease agreement, arguing that the property was conjugal property and thus required his consent for disposition.

Issue:

Ruling:
No Ownership Interest for Alien Spouse: Even if Benjamin provided the funds for the acquisition, he acquired no right or interest over the property. The Court ruled that allowing an alien to claim ownership (even indirectly, through a claim of conjugal property rights) would be a circumvention of the constitutional prohibition.

Sole Ownership by Filipino Spouse: Since Joselyn, as a Filipino citizen, was the designated vendee in the Deed of Sale, she acquired sole ownership of the property.

Consent Not Required: Consequently, since the property was Joselyn's exclusive property and not part of the conjugal assets in a way that would grant Benjamin a decisive say in its disposition, his consent was not required for the lease agreement to be valid.

Ratio decidendi:

Class Notes:

Dispositive portion:

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b) of Respective Interest in Absolute Community Property Dissolution and Liquidation of Absolute Community
Grounds
Art. 99 in rel. to Arts. 103, 63-64, 50-52, 134-138

Article 99. The absolute community terminates:

(1) Upon the death of either spouse;
(2) When there is a decree of legal separation;
(3) When the marriage is annulled or declared void; or
(4) In case of judicial separation of property during the marriage under Article 134 to 138.

Article 103. Upon the termination of the marriage by death, the community property shall be liquidated in the same proceeding for the settlement of the estate of the deceased.

If no judicial settlement proceeding is instituted, the surviving spouse shall liquidate the community property either judicially or extra-judicially within six months from the death of the deceased spouse. If upon the lapse of the six months period, no liquidation is made, any disposition or encumbrance involving the community property of the terminated marriage shall be void.

Should the surviving spouse contract a subsequent marriage without compliance with the foregoing requirements, a mandatory regime of complete separation of property shall govern the property relations of the subsequent marriage.

Article 63. The decree of legal separation shall have the following effects:

(1) The spouses shall be entitled to live separately from each other, but the marriage bonds shall not be severed;

(2) The absolute community or the conjugal partnership shall be dissolved and liquidated but the offending spouse shall have no right to any share of the net profits earned by the absolute community or the conjugal partnership, which shall be forfeited in accordance with the provisions of Article 43(2);

(3) The custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code; and

(4) The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession. Moreover, provisions in favor of the offending spouse made in the will of the innocent spouse shall be revoked by operation of law.

Article 64. After the finality of the decree of legal separation, the innocent spouse may revoke the donations made by him or by her in favor of the offending spouse, as well as the designation of the latter as beneficiary in any insurance policy, even if such designation be stipulated as irrevocable. The revocation of the donations shall be recorded in the registries of property in the places where the properties are located. Alienations, liens and encumbrances registered in good faith before the recording of the complaint for revocation in the registries of property shall be respected. The revocation of or change in the designation of the insurance beneficiary shall take effect upon written notification thereof to the insured.

The action to revoke the donation under this Article must be brought within five years from the time the decree of legal separation become final.

Article 50. The effects provided for by paragraphs (2), (3), (4) and (5) of Article 43 and by Article 44 shall also apply in the proper cases to marriages which are declared ab initio or annulled by final judgment under Articles 40 and 45.

The final judgment in such cases shall provide for the liquidation, partition and distribution of the properties of the spouses, the custody and support of the common children, and the delivery of third presumptive legitimes, unless such matters had been adjudicated in previous judicial proceedings.

All creditors of the spouses as well as of the absolute community or the conjugal partnership shall be notified of the proceedings for liquidation.

In the partition, the conjugal dwelling and the lot on which it is situated, shall be adjudicated in

accordance with the provisions of Articles 102 and 129.

Article 51. In said partition, the value of the presumptive legitimes of all common children, computed as of the date of the final judgment of the trial court, shall be delivered in cash, property or sound securities, unless the parties, by mutual agreement judicially approved, had already provided for such matters.

The children or their guardian or the trustee of their property may ask for the enforcement of the judgment.

The delivery of the presumptive legitimes herein prescribed shall in no way prejudice the ultimate successional rights of the children accruing upon the death of either of both of the parents; but the value of the properties already received under the decree of annulment or absolute nullity shall be considered as advances on their legitime.

Article 52. The judgment of annulment or of absolute nullity of the marriage, the partition and distribution of the properties of the spouses and the delivery of the children's presumptive legitimes shall be recorded in the appropriate civil registry and registries of property; otherwise, the same shall not affect third persons.

Article 134. In the absence of an express declaration in the marriage settlements, the separation of property between spouses during the marriage shall not take place except by judicial order. Such judicial separation of property may either be voluntary or for sufficient cause.

Article 135. Any of the following shall be considered sufficient cause for judicial separation of property:

(1) That the spouse of the petitioner has been sentenced to a penalty which carries with it civil interdiction;

(2) That the spouse of the petitioner has been judicially declared an absentee;

(3) That loss of parental authority of the spouse of petitioner has been decreed by the court;

(4) That the spouse of the petitioner has abandoned the latter or failed to comply with his or her obligations to the family as provided for in Article 101;

(5) That the spouse granted the power of administration in the marriage settlements has abused that power; and

(6) That at the time of the petition, the spouses have been separated in fact for at least one year and reconciliation is highly improbable.

In the cases provided for in Numbers (1), (2) and (3), the presentation of the final judgment against the guilty or absent spouse shall be enough basis for the grant of the decree of judicial separation of property.

Article 136. The spouses may jointly file a verified petition with the court for the voluntary dissolution of the absolute community or the conjugal partnership of gains, and for the separation of their common properties.

All creditors of the absolute community or of the conjugal partnership of gains, as well as the personal creditors of the spouse, shall be listed in the petition and notified of the filing thereof. The court shall take measures to protect the creditors and other persons with pecuniary interest.

Article 137. Once the separation of property has been decreed, the absolute community or the conjugal partnership of gains shall be liquidated in conformity with this Code.

During the pendency of the proceedings for separation of property, the absolute community or the conjugal partnership shall pay for the support of the spouses and their children.

Article 138. After dissolution of the absolute community or of the conjugal partnership, the provisions on complete separation of property shall apply.

Muller v. Muller, 500 S 65

Facts:

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Beumer v. Amores, 3 December 2012 Effect of Separation De Facto

Facts:

Willem Beumer, a Dutch national, was married to Avelina Amores, a Filipina. During their marriage, several parcels of land were acquired using funds that Beumer claimed came from his disability benefits. Due to the constitutional prohibition on foreigners owning land, the properties were registered in Avelina's name.

After their marriage was annulled, Beumer filed a petition to dissolve their conjugal partnership and sought a share in the properties, or at least reimbursement for the funds he used to purchase the land.

Issue:

Ruling:

Surely, a contract that violates the Constitution and the law is null and void, vests no rights, creates no obligations and produces no legal effect at all. Corollary thereto, under Article 1412 of the Civil Code, petitioner cannot have the subject properties deeded to him or allow him to recover the money he had spent for the purchase thereof. The law will not aid either party to an illegal contract or agreement; it leaves the parties where it finds them. Indeed, one cannot salvage any rights from an unconstitutional transaction knowingly entered into.

Neither can the Court grant petitioner's claim for reimbursement on the basis of unjust enrichment.33 As held in Frenzel v. Catito, a case also involving a foreigner seeking monetary reimbursement for money spent on purchase of Philippine land, the provision on unjust enrichment does not apply if the action is proscribed by the Constitution.

Ratio decidendi:

Class Notes:

Dispositive portion:

Separation de facto – refers to a situation where the spouses simply separate without the benefit of a decree of legal separation. As a consequence:

(1) The spouses retained their right of consortium because in the eyes of the law, they are not entitled to live separately from each other, unlike in legal separation where the spouses enjoy the right to live separately from each other;

(2) The separation de facto does not likewise effect the regimes of absolute community, or conjugal partnership of gains;

(3) The spouses continue to be the legal heir of each other in intestate succession; and

(4) There is neither a guilty spouse nor an innocent spouse.

Liquidation Procedure Arts. 102-104

Article 102. Upon dissolution of the absolute community regime, the following procedure shall apply:

(1) An inventory shall be prepared, listing separately all the properties of the absolute community and the exclusive properties of each spouse.

(2) The debts and obligations of the absolute community shall be paid out of its assets. In case of insufficiency of said assets, the spouses shall be solidarily liable for the unpaid balance with their separate properties in accordance with the provisions of the second paragraph of Article 94.

(3) Whatever remains of the exclusive properties of the spouses shall thereafter be delivered to each of them.

(4) The net remainder of the properties of the absolute community shall constitute its net assets, which shall be divided equally between husband and wife, unless a different proportion or division was agreed upon in the marriage settlements, or unless there has been a voluntary waiver of such share provided in this Code. For purpose of computing the net profits subject to forfeiture in accordance with Articles 43, No. (2) and 63, No. (2), the said profits shall be the increase in value between the market value of the community property at the time of the celebration of the marriage and the market value at the time of its dissolution.

(5) The presumptive legitimes of the common children shall be delivered upon partition, in accordance with Article 51.

(6) Unless otherwise agreed upon by the parties, in the partition of the properties, the conjugal dwelling and the lot on which it is situated shall be adjudicated to the spouse with whom the majority of the common children choose to remain. Children below the age of seven years are deemed to have chosen the mother, unless the court has decided otherwise. In case there in no such majority, the court shall decide, taking into consideration the best interests of said children. (n)

Article 103. Upon the termination of the marriage by death, the community property shall be liquidated in the same proceeding for the settlement of the estate of the deceased.

If no judicial settlement proceeding is instituted, the surviving spouse shall liquidate the community property either judicially or extra-judicially within six months from the death of the deceased spouse. If upon the lapse of the six months period, no liquidation is made, any disposition or encumbrance involving the community property of the terminated marriage shall be void.

Should the surviving spouse contract a subsequent marriage without compliance with the foregoing

requirements, a mandatory regime of complete separation of property shall govern the property relations of the subsequent marriage. (n)

Article 104. Whenever the liquidation of the community properties of two or more marriages contracted by the same person before the effectivity of this Code is carried out simultaneously, the respective capital, fruits and income of each community shall be determined upon such proof as may be considered according to the rules of evidence. In case of doubt as to which community the existing properties belong, the same shall be divided between the different communities in proportion to the capital and duration of each.

De Ocampo v. Delizo, 69 S 216

Facts:
The case was an action for partition filed by the children of Nicolas Delizo's first marriage (to Rosa Villasfer, who died in 1909) against his second wife, Dorotea de Ocampo, and their children.

Issue: The central issue was determining which properties belonged to the first conjugal partnership and which to the second, particularly concerning several hectares of land acquired through the Public Land Law (Homestead Act).

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Vda. De Consuegra v. GSIS, 37 S 315

Facts:

Issue:

Ruling:

Ratio decidendi:

Class Notes:

Dispositive portion:

Domingo v. Molina, GR No. 200274, 20 April 2016 (effect if surviving spouse sells or encumbers community property without having liquidated the same)

Facts:

Issue:
Ruling: **Ratio decidendi:** **Class Notes:** **Dispositive portion:**